THE BIOLOGICAL AND TOXIN WEAPONS CONVENTION (IMPLEMENTATION) ACT, 2026

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THE BIOLOGICAL AND TOXIN WEAPONS CONVENTION (IMPLEMENTATION) ACT, 2026

ACT NO. II OF 2026

[*19th* December, *2025*]

AN

ACT

to give effect to the Convention on the Prohibition of the Development, Production and Stockpiling of Bacteriological (Biological) and Toxin Weapons and on their Destruction, 1972

WHEREAS, it is expedient to give effect to the Convention on the Prohibition of the Development, Production and Stockpiling of Bacteriological (Biological) and Toxin Weapons and on their Destruction, 1972;

AND WHEREAS, Pakistan is determined to prevent any use or threat of use of biological weapons and their proliferation;

AND WHEREAS, Pakistan ratified the Convention on the Prohibition of the Development, Production and Stockpiling of Bacteriological (Biological) and Toxin Weapons and on their Destruction, 1972 by supporting its objectives and purposes;

AND WHEREAS, Pakistan is determined to regulate biological agents and toxins for peaceful purposes and cooperate, where necessary, in their exchange for the said purpose;

It hereby enacted as follows:-

1. Short title, extent and application.- (1) This Act shall be called the Biological and Toxin Weapons Convention (Implementation) Act, 2026.

(2) It extends to the whole of Pakistan and applies to -

(a) all citizens of Pakistan wherever they may be;

(b) any person who has committed an offence under this Act while in the territory of Pakistan or if the offence is committed against Pakistan or a citizen of Pakistan from within Pakistan or anywhere else;

(c) any foreign national while in the territory of Pakistan; or

(d) any conveyance registered in Pakistan wherever it may be, or any conveyance registered anywhere else but present within the territories of Pakistan.

2. Definitions.- In this Act, unless there is anything repugnant in the subject or context,-

(a) "aid and abetment" means acts as defined under section 107 of the Pakistan Penal Code (Act XLV of 1860);

(b) "biological agents" means any micro-organism; bacteria, virus, fungus, prion or other infectious substance or their biological products, genetically modified

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organisms, capable of causing death, disease or other biological malfunction and incapacitation of human beings, animals or plants;

(c) "biological weapons" means-

(i) microbial or other biological agents, or toxins whatever their origin or method of production, or types and in quantities that have no justification for prophylactic, protective or other peaceful purposes; or

(ii) weapons, equipment or means of delivery designed to use such agents or toxins for hostile purposes;

(d) "Convention" means the Convention on the Prohibition of the Development, Production and Stockpiling of Bacteriological (Biological) and Toxin Weapons and on their Destruction, 1972;

(e) "conveyance" means any means of transport used on land, air, or the sea;

(f) "development" includes any activity or phase prior to production, or relates to design research, design analysis, design concept, assembly and testing of prototypes, pilot production schemes, design data, the process of transforming design data into product, configuration design and integration design or layout;

(g) "central authority" means the authority notified by the minister for foreign affairs to the convention secretariat for the purpose of implementation of the Convention;

(h) "enforcement agency" means any agency or agencies designated by the Federal Government under section 11;

(i) "equipment" includes any assembly which may comprise electrical, electronic, mechanical, chemical and metallurgical components, used in manufacturing, production and stockpiling of biological weapons;

(j) "export" includes-

(i) shipment, transfer or transmission of goods or technology out of Pakistan; and

(ii) a transfer of goods and technology within Pakistan with the knowledge or intent that the goods or technology shall be shipped, transferred or transmitted to an unauthorized recipient outside Pakistan;

(k) "oversight committee" means committee constituted under section 10;

(l) "import" includes shipment, transfer or transmission of biological weapons or related technology into Pakistan;

(m) "material" includes materials used in the production of biological weapons and their delivery systems;

(n) "means of delivery" includes missiles or any other delivery system designed and adapted to deliver biological weapons;

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(o) "permitted purpose" includes-

(i) industrial, agricultural, research, medical, pharmaceutical or other peaceful purposes; and

(ii) protective purposes that are designed to protect humans, plants and animals against the use of biological and toxin weapons;

(p) "person" includes an individual who may or may not be a citizen of Pakistan, a company, an association, a body of individuals, whether incorporated or not;

(q) "technology" means any documents including blueprints, plans, diagrams, models, formulas, tables, engineering designs or specifications, manuals or instructions, necessary for the development and production of biological weapons, and their delivery systems, including on the job training, expert advice and services attached therewith, except-

(i) any document or information that is in public domain or is related to basic scientific research or other peaceful applications of such technology including that related to its application for protective purposes; and

(ii) any application of the grant of a patent or any other form of protection for inventions or for the registration of a design in each case under the law of Pakistan or any other country or under any treaty or international conventions to which Pakistan is a party or any document necessary to enable any such application to be filed, made or pursued; and

(r) "toxin" means any toxic material derived from plants, animals, micro-organisms including bacteria, viruses, fungi, or other infectious substances or their products, whatever may be their origin or method of production.

3. Prohibition of biological weapons.- (1) No person shall, for purpose prohibited under the Convention,-

(a) develop, manufacture, design, produce, stockpile, transport, import, export, sell, transfer or otherwise acquire, possess, control or retain a biological weapon;

(b) knowingly manufacture, develop, design, produce, stockpile, transport, transfer or otherwise acquire or retain any material, equipment, or technologies which are intended to be used in the preparation of a biological weapon;

(c) knowingly develop, design, produce, stockpile, transport, or otherwise, acquire, retain, import, export, sell, transfer any means of delivery designed to use biological agents or toxins for hostile purposes or use in armed conflict; or

(d) knowingly provide technical, financial, logistical or any other assistance directly or indirectly by any means for the acts mentioned hereinabove.

(2) Whosoever contravenes, or attempts to contravene, the provisions of clause (a) of sub-section (1) shall be liable to punishment of imprisonment of either description for a term which may extend to twenty-five years but not less than ten years and also liable to fine up to ten million rupees and all

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materials, equipments, technologies, etc. relating to biological weapons, recovered or found along with conveyance and movable and immovable property of the offender shall be liable to forfeiture to the Federal Government.

(3) Whosoever contravenes, or attempts to contravene, the provisions of clauses (b), (c) or (d) of sub-section (1) shall be liable to punishment of imprisonment of either description for a term which may extend to twenty-five years and also liable to fine up to ten million rupees and all materials, equipments, technologies, etc. relating to biological weapons, recovered or found along with conveyance and movable and immovable property of the offender shall be liable to forfeiture to the Federal Government.

4. Prohibition of use of biological weapons, etc.- (1) No person shall use or attempt to use biological weapons in Pakistan, or anywhere outside Pakistan.

(2) Whosoever contravenes, or attempts to contravene, any provision of sub-section (1) shall be punished with imprisonment for life and shall also be liable to fine not less than ten million rupees and materials, equipments, technologies as well as all movable and immovable property of such an offender shall be liable to be forfeited to the Federal Government.

5. Control of import and export.- (1) The central authority, in consultation with the division to which business of import and export stands allocated, shall exercise power to control or restrict or lay down conditions in respect of import and export of any biological agent, equipments, materials, or technologies and their means of delivery.

(2) For the purposes of sub-section (1), the word "control" refers to "control list of such biological agents or technologies" notified under the Export Control on Goods, Technologies, Material and Equipment related to Nuclear and Biological Weapons and their Delivery System Act, 2004 (V of 2004) and the rules made thereunder.

(3) Whosoever contravenes, or attempts to contravene, the provisions of the control or restriction under this section shall be liable to punishment of imprisonment for a term which may extend to fourteen years or with fine not exceeding five million rupees or with both, and on conviction, offender's property and assets, wherever they may be, shall be forfeited to the Federal Government.

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(4) Whoever commits breach of any restriction or conditions specified in sub-section (1) that constitutes an offence under section 3 or section 4 shall also be punishable under the aforesaid sections.

6. Biological defence research.- Nothing in this Act shall prohibit any programme or activity carried out or authorized by the Federal Government that is specifically designed to protect or defend humans, animals or plants against the use of biological agents or toxins for hostile purposes or in armed conflict, or to detect or assess the impact of such use.

7. Other offences.- (1) Any person who is found to have been abetting or aiding or assisting the commission of any act that constitutes an offence under the Act or its attempt, shall be liable to punishment of imprisonment of either description for life or for a term which may extend to fourteen years and shall also be liable to fine and his movable and immovable property shall also be liable to forfeiture to the Federal Government.

(2) Any person who is found to have, or attempted to have, in any way financed the commission of any act that constitutes an offence under this Act shall be liable to punishment of imprisonment of

either description for life or for a term which may extend to fourteen years and shall also be liable to fine and his movable and immovable property shall be liable to forfeiture to the Federal Government.

(3) Any person who is found to harbour any offender, who has committed an offence under this Act, shall be liable to punishment of imprisonment of either description for life or for a term which may extend to fourteen years and shall also be liable to fine and his movable and immovable property shall be liable to forfeiture to the Federal Government.

(4) Any person who knowingly violates the rules made under this Act shall be liable to punishment of imprisonment for a term which may extend to five years, or shall also be liable to fine which may extend to one million rupees or with both.

8. Offences, etc. to be tried by Court of Sessions.- Any person who contravenes any provision of this Act and rules made thereunder shall be tried by Court of Sessions only upon a complaint in writing made by an officer authorized by the central authority for purpose of this Act. The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898) shall *mutatis mutandis* be applicable for the purpose of trial and other proceedings.

9. Permissible uses.- (1) The central authority shall facilitate and have the right to participate in the fullest possible exchange of equipment, materials and scientific and technological information, for the use of bacteriological (biological) agents and toxins for peaceful purposes.

(2) The central authority shall cooperate in contributing individually or collectively with other states or international organizations to the development and application of scientific discoveries in the field of bacteriology (biology) for prevention of disease, or for other peaceful purposes.

(3) Nothing in this Act shall be implemented in a manner to hamper the economic or technological development or international cooperation in respect of peaceful bacteriological (biological) activities including the exchange of bacteriological (biological) agents and toxins and equipment for the processing, use or production of bacteriological (biological) agents and toxins for peaceful purposes.

10. Oversight committee.- (1) The secretary, ministry of foreign affairs shall constitute an oversight committee consisting of such members as may be notified in the official Gazette.

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(2) The oversight committee shall ensure the effective implementation of the Convention and the provisions of this Act and rules made thereunder.

(3) The oversight committee shall follow such procedure as may be prescribed.

11. Enforcement agency.- (1) The secretary, ministry of foreign affairs shall designate any law enforcement agency or agencies for the enforcement of this Act, or it may entrust any of its functions under this Act to any government body, agency or entity.

(2) The enforcement agency shall have the powers to carry out necessary acts including collection of information, inquiry, investigation, search, seizure, arrests and prosecution of the individuals, entities and organizations, as the case may be, that are suspected to have committed an offence under this Act or any violation of rules, control list and any other direction, order or instruction issued for the purpose of implementation of this Act.

(3) The enforcement agency shall also be entitled to seek assistance from the law enforcement bodies and judicial bodies in other states, for the purpose of investigation under this Act.

12. International cooperation.- The central authority, upon receiving a request from any state party to the Convention, may extend possible cooperation in respect of matters covered by this Act.

13. Power to make rules.- The Federal Government may, on recommendations of the central authority and by notification in the official Gazette, make rules for the purpose of implementation of this Act.

14. Act not to derogate from other laws.- The provisions of this Act shall be in addition to and not in derogation of any law or rules, orders or notifications for the time being in force.

15. Removal of difficulties.- If a difficulty arises in giving effect to any provision of this Act, the Federal Government may make such order, not inconsistent with the provisions of this Act, as may appear to be necessary for the purpose of removing the difficulty.

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RGN Date: 22-01-2026